

22STCV33630 22STCV33630

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 22STCV33630 Hearing Date: July 27, 2026 Dept: 11

Castillo (22STCV33630)

Tentative

Ruling Re: Motion to for Class Certification

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Date: 7/27/26

Time: 11:00 am

Moving Party: Marylou M.

Castillo ("Plaintiff")

Opposing Party: None

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiff's motion for class

certification is denied as to the Class, and the hearing is continued as to the

Unpaid Wage Subclass, Regular Rate Subclass, Meal Period Premium Wage Subclass,

Rest Period Premium Wage Subclass, Waiting Time Subclass, and Wage Statement

Subclass.

BACKGROUND

This is a putative class action. Plaintiff alleges that MYS Wholesale, Inc. (“Defendant”) committed numerous wage-and-hour violations against her and other current and former non-exempt employees.

Here, Plaintiff moves to certify one class and six subclasses.

The motion is unopposed. Defendant failed to file an opposition by the opposition deadline and, to date, still has not filed an opposition.

DISCUSSION

Applicable Law

The plaintiff is obligated to show that class certification is proper. (See *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 460; see also *Caro v. Procter & Gamble Co.* (1993) 18 Cal.App.4th 644, 654.) He or she “must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives.” (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

Ascertainability and Numerosity

A class is “ascertainable when it is defined ‘in terms of objective characteristics and common transactional facts’ that make ‘the ultimate identification of class members possible when that identification becomes necessary.’” (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980.)

“The class must be ‘numerous’ in size. But there is no fixed minimum or maximum number . . . The numerosity analysis is limited to how many individuals fall within the class definition and whether their

joinder is impracticable, not how many 'net' class members there might be after considering affirmative defenses." (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group June 2023 Update) ¶ 14:21, emphasis in original.)

"A party seeking class certification bears the burden of satisfying the requirements of Code of Civil Procedure section 382, including numerosity, and the trial court is entitled to consider 'the totality of the evidence in making [the] determination' of whether a 'plaintiff has presented substantial evidence of the class action requisites.'" (Soderstedt v. CBIZ S. California, LLC (2011) 197 Cal.App.4th 133, 154.)

Commonality

"[T]he proponent of certification must show, inter alia, that questions of law or fact common to the class predominate over the questions affecting the individual members[.]" (Washington Mutual Bank, FA v. Superior Court (2001) 24 Cal.4th 906, 913.) This means "each member must not be required to individually litigate numerous and substantial questions to determine his [or her] right to recover following the class judgment[.]" (Weil & Brown, supra, at ¶ 14:11.6.) "[T]he issues which may be jointly tried, when compared with those requiring separate adjudication, must be sufficiently numerous and substantial to make the class action advantageous to the judicial process and to the litigants." (Ibid.)

Typicality and Adequacy

"The 'test of typicality is whether other members have the same or similar injury, whether the action is based on conduct which is not unique to the named plaintiffs, and whether other class members have been injured by the same course of conduct.'" (Id. at ¶ 14:29 [quoting Martinez v. Joe's Crab Shack Holdings (2014) 231 Cal.App.4th 362, 375].)

"That the purported class representative's claims must be 'typical' does not mean they must be identical to the claims of other class members. It is sufficient that the representative is similarly situated so that he or she will have the motive to litigate on behalf of all class members." (Id. at ¶

14:29.2.) Consequently, “it is not necessary that the class representative have personally incurred all of the damages suffered by each of the other class members.” (Ibid., emphasis in original.)

Moreover, “[t]he class representative, through qualified counsel, must be capable of ‘vigorously and tenaciously’ protecting the interests of the class members.” (Id. at ¶ 14:36.)

“The prospective class representative must file a declaration stating that he or she desires to represent the class and understands the fiduciary obligations of serving[.]” (Ibid.)

Manageability
and Superiority

“The proponent of class certification must demonstrate that the proposed class action is manageable [citation].” (Id. at ¶ 14:11.10.) “This requires the trial court ‘to carefully weigh the respective benefits and burdens of a class action, and to permit its maintenance only where substantial benefits will be accrued by both litigants and the courts alike.’ [Citation.]” (Ibid., emphasis in original.)

“In certifying a class action, the court must also conclude that litigation of individual issues, including those arising from affirmative defenses, can be managed fairly and efficiently.” (Duran v. U.S. Bank National Assn. (2014) 59 Cal. 4th 1, 28-29.) “Trial courts must pay careful attention to manageability when deciding whether to certify a class action. In considering whether a class action is a superior device for resolving a controversy, the manageability of individual issues is just as important as the existence of common questions uniting the proposed class.” (Id. at 29.)

“A class action is not ‘superior’ where there are numerous and substantial questions affecting each class member’s right to recover, following determination of liability to the class as a whole.” (Weil & Brown, *supra*, at ¶ 14:46, emphasis in original.)

Analysis

Ascertainability
and Numerosity

Class: "All current and former
non-exempt employees employed by MYS Wholesale, Inc. at any time from October
14, 2018 through the date of class certification ('Class Period')." (Motion, p. 8.)

Unpaid Wage Subclass: "All Class
Members whose original time records were edited during the Class Period." (Ibid.)

Regular Rate Subclass: "All Class
Members who received Holiday pay and overtime in the same pay period during the
Class Period." (Ibid.)

Meal Period Premium Wage Subclass: "All
Class Members who worked a shift of five (5) hours or longer during the Class
Period." (Ibid.)

Rest Period Premium Wage Subclass: "All
Class Members who worked a shift of three and a half (3.5) hours or longer
during the Class Period." (Ibid.)

Waiting Time Subclass: "All Class
Members whose employment with Defendant ended at any time from October 14, 2019
through the present." (Ibid.)

Wage Statement Subclass: "All Class
Members who received a wage statement from Defendant at any time from October
14, 2021 through the present." (Ibid.)

The Court finds the Class and subclass
definitions overbroad. They appear to encompass
all current and former employees regardless of whether they were subjected to the
alleged misconduct.

For example, take the Meal Period
Premium Wage Subclass. The definition

covers every employee who worked a five-hour shift rather than just employees who worked a five-hour shift and did not receive a meal break or meal-break pay in lieu of a rest break for that shift.

The Court will give Plaintiff's counsel an opportunity to propose amended subclass definitions.[1]

The same goes for numerosity. Plaintiff represents: "Defendant has already produced the contact information for 121 Class Members in formal discovery." (Motion, p. 9.) The number pertains to the overbroad class definition. There is no discussion of the number of putative members in the subclasses. (See *ibid.*) The Court will permit Plaintiff's counsel to submit supplemental regarding numerosity along with the amended definitions.

Commonality

Class: The motion is denied. Plaintiff's arguments concerning alleged common policies and practices pertain to the subclasses. She does not cite a common policy or practice that applies uniquely to the Class. (See Motion, pp. 10-18.) Bottom line, the Class is superfluous.

Unpaid Wage Subclass: Plaintiff meets her burden. Her liability theory is that Defendant only paid employees their scheduled hours, even if they worked extra hours. Indeed, she alleges that Defendant went so far as to edit employees' time records so that the listed times did not exceed eight hours per day. (See *id.* at pp. 2-5, 10-11.) The Court finds her showing acceptable to demonstrate predominating common issues. (See *ibid.*)

Regular Rate Subclass: Plaintiff meets her burden. She alleges that Defendant had a "policy of not incorporating payments labeled 'Holiday' in the regular rate for overtime":

Defendant made "Holiday" payments to Class Members when they worked their regular workdays before and after specified holidays. If a Class Member does not work either their regular workday before or after a

specified holiday, they will not receive "Holiday" pay. Thus, what determines whether a Class Member is eligible for Defendant's "Holiday" payments is not the specified holiday itself, but days other than the holiday, i.e., a Class Member's regular workdays before and after the holiday. By conditioning holiday pay on showing up to work on regularly scheduled workdays before and after holidays, Defendant is directly incentivizing Class Members to come to work these specific days. Under these circumstances, Defendant's policy is not a true holiday bonus because it requires that an employee work both days before and days after the holiday and therefore functions as an attendance bonus to encourage employees to work during holiday weeks.

(Id. at p. 12; see also id. at pp. 6, 13.) The Court finds her showing acceptable to demonstrate predominating common issues.

Meal Period Premium Wage Subclass:

Plaintiff meets her burden. She claims (1)

Defendant "did not maintain accurate time records showing when Class Members started and ended their meal breaks" and (2) "Defendant's written meal period policy failed to comply with California law on its face":

Although Defendant required Class Members to clock in and out for meal breaks, Defendant confirmed that its practice was to adjust those times if it does not comport with their scheduled time. As such, Defendant confirmed that an employee cannot look at their time records to confirm what hours they worked and thus confirm if they were provided with a compliant meal period. Ex. A at 88:2-21. Indeed, on the overwhelming majority of shifts, Defendant's records confirm that it deducted one-hour for meal periods that appear to purportedly be taken every day at the same exact time. Based on this data, and Defendant's own testimony that it edited time records, there is clearly a common question as to the legality of this practice, and whether Class Members worked during their unpaid meal periods.

* * *

. . . Defendant's meal policy provides only that:

"Non-exempt employees will receive a one hour, unpaid meal break (10 -6010) and 20 minutes paid break if they work eight hours in one shift. Meal breaks are not considered time worked for

overtime purposes. It is your responsibility to take meal breaks which shall not unreasonably be disallowed.”

Ex. 2, policy 2.8 Rest Breaks And Meal Breaks. Defendant confirmed this policy was used in practice for all Class Members. Ex. A at 60:14-23. This policy is missing almost all of the information that a meal break policy should contain, including when the meal periods should be taken or that it must be provided for every five hours of work. Defendant similarly attested that it does not have any policy on when meal periods must be taken. Ex. A at 99:24-100-7. Defendant’s policy also fails to inform Class Members of their right to meal premiums for any non-compliant meal period. Therefore, the legality of this policy is a predominantly common question that can be determined for the entire Class by referring to the written policy itself and Defendant’s own testimony, and comparing Defendant’s policies against the requirements of the law. . . .

(Id. at pp. 13-14; see also id. at pp. 4-6, 7, 15-16.) The Court finds her showing acceptable to demonstrate predominating common issues.

Rest Period Premium Wage Subclass:

Plaintiff meets her burden. She contends

“Defendant maintained an unlawful rest break policy that only authorized a rest break for every four hours worked in violation of California law by ignoring the “major fraction thereof” requirement.”

(Id. at p. 16.) She insists

that “Defendant confirmed it implemented this unlawful policy in practice” and that “[t]he policy is also deficient because it does not inform Class Members that rest breaks are to be duty free[.]”

(Ibid.; see also id. at pp. 5-6, 7, 17 [claiming

“Defendant did not pay any rest period premiums during the Class Period, as also reflected by its policy omitting this requirement”].) The Court finds her showing acceptable to demonstrate predominating common issues.

Waiting Time Subclass: Plaintiff

meets her burden. She states:

First, Plaintiff raises common questions concerning whether Defendant paid final wages to separated Class Members within the time

limits set by the Labor Code. Defendant failed to maintain a written policy regarding when to pay Class Members' final wages during the Class Period. Robles Decl. ¶ 8. Common time and pay records show that Defendant uniformly paid final wages on regularly scheduled pay days . . . causing final wages to be paid late.

Next, Plaintiff raises common questions concerning whether Defendant paid all accrued, unused PTO in Class Members's final wages. First, Defendant's PTO written policy is facially unlawful, providing that "Once you leave the Company for any reason, you will not receive any payment for any unused vacation time if you have been employed for less than one year." Ex. 2 at p. 000266-267, Paid Time Off (PTO). This policy misstates California law, which requires employers to pay for all accrued and unused PTO at termination regardless of length of employment. Specifically, Labor Code section 227.3 provides that an employment contract "shall not provide for forfeiture of vested vacation time upon termination." Here, Defendant improperly limited the payout of any accrued PTO to only employees employed for more than a year. As a result of this illegal policy, Defendant uniformly failed to pay all accrued, unused PTO in Class Members' final wages. There is sufficient common evidence to decide whether Defendant's failure to pay accrued PTO violates the law.

Finally, Plaintiff alleges that her claim for waiting time penalties is also derivative of the foregoing violations. When Class Members stopped working for Defendant, they were not paid for the unpaid wages and meal and rest premiums described herein that had accrued during their employment.

(Id. at pp. 17-18; see also id. at pp. 7-8.)
The Court finds her showing acceptable to demonstrate predominating common issues.

Wage Statement Subclass: Plaintiff
meets her burden. She asserts:

. . . Plaintiff's derivative claim[] for wage statement penalties . . . raises common questions as these claims depend on liability findings for the underlying violations discussed above. Common questions of law and fact predominate as to whether Defendant's wage statements are accurate, whether the violations were knowing and intentional, and whether employees suffered injury.

(Id. at p. 18.) The Court finds her showing acceptable to demonstrate predominating common issues.

Typicality and Adequacy

Plaintiff meets her burden. The evidence suffices to prove that Plaintiff is typical and adequate and that Plaintiff's counsel is adequate. (See id. at pp. 18-20; see also Castillo Decl., ¶¶ 24-31; Robles Decl., ¶¶ 36-47.)

Manageability and Superiority

Plaintiff meets her burden. Because common issues predominate, the class method is manageable and superior as to the Unpaid Wage Subclass, Regular Rate Subclass, Meal Period Premium Wage Subclass, Rest Period Premium Wage Subclass, Waiting Time Subclass, and Wage Statement Subclass.

Conclusion

The hearing is continued as to the Unpaid Wage Subclass, Regular Rate Subclass, Meal Period Premium Wage Subclass, Rest Period Premium Wage Subclass, Waiting Time Subclass, and Wage Statement Subclass. At the hearing the court will set a date by which an amended motion is filed.

[1] For the reason stated *infra* in the commonality section, the Court is denying certification of the Class. Amending the definition would not change the result.